

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CLCL065031: SOFI BANK, N.A. vs TAIWO OREKOYA

07/15/2026 in Department 21

Motion to Compel Arbitration and Abate Civil Action

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion to Compel Binding Arbitration and Stay Proceedings

Tentative Ruling: Defendant’s Petition to Compel Binding Arbitration is GRANTED.

Plaintiff SoFi Bank, N.A.’s breach-of-contract claim is ordered to binding arbitration before the American Arbitration Association pursuant to the arbitration agreement attached to Plaintiff’s complaint.

Defendant’s request to “abate” the action is construed as a request for a stay. The entire action is STAYED under CCP § 1281.4 pending completion of arbitration.

Defendant shall initiate the AAA arbitration within 60 calendar days after service of notice of entry of this order and shall file proof that arbitration has been initiated.

An arbitration status conference is set for January 12, 2027, at 8:30 a.m. in Department 21.

If Defendant does not timely initiate or thereafter diligently pursue arbitration, Plaintiff may apply to lift the stay or seek other appropriate relief.

The motion is otherwise denied to the extent it seeks dismissal rather than a stay of the civil action.

Moving party to give notice.

Discussion:

1. Existence of an agreement

Defendant has established the existence of an arbitration agreement. He identified the parties' credit-card agreement and attached an arbitration provision to his petition. Although the excerpt attached to the petition appears to be a different version from the complete agreement attached to the complaint, Plaintiff does not dispute that the parties entered into an agreement containing an arbitration provision. To the contrary, Plaintiff relies on the cardholder agreement as the basis for its contract claim and acknowledges in its opposition that the applicable agreement is attached to the complaint.

The Court therefore treats the agreement attached to Plaintiff's complaint as the operative agreement. Plaintiff has not presented evidence disputing its formation, authenticity, or applicability.

2. Scope and election of arbitration

The operative arbitration agreement defines "Claim" broadly to include initial claims and disputes based on contract and other legal theories. The agreement provides that, if either party elects arbitration, the claim may not continue to be litigated in court. Plaintiff's breach-of-contract claim concerning an unpaid credit-card balance plainly falls within the agreement.

3. Demand and refusal to arbitrate

Defendant did not serve a separate arbitration demand before filing the petition. That omission does not require denial. CCP § 1281.2 requires a refusal to arbitrate but does not invariably require a formal prepetition demand. (*Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 576-578.) A refusal may be established without a prior formal demand where the opposing party has demonstrated that it will not submit the controversy to arbitration. Plaintiff's opposition to Defendant's petition for arbitration establishes its refusal to arbitrate. The statutory prerequisite is therefore satisfied.

4. Statutory exceptions

Plaintiff has not established waiver, grounds for rescission, a pending third-party action presenting a possibility of conflicting rulings, fraudulent creation of the account, or any other statutory ground for denying arbitration under CCP § 1281.2.

Defendant filed the petition approximately one month after the complaint and concurrently with his answer. The record contains no material litigation activity inconsistent with his election to arbitrate.

5. Governing arbitration provision

The excerpt attached to Defendant's petition permits arbitration before either JAMS or AAA. The agreement attached to Plaintiff's complaint, however, provides for arbitration under the AAA rules. Because Plaintiff identifies the agreement attached to its complaint as the applicable agreement, the Court orders arbitration under that agreement before AAA.

Conclusion:

Defendant's Petition to Compel Binding Arbitration is GRANTED.

Plaintiff SoFi Bank, N.A.'s breach-of-contract claim is ordered to binding arbitration before the American Arbitration Association pursuant to the arbitration agreement attached to Plaintiff's complaint.

Defendant's request to "abate" the action is construed as a request for a stay. The entire action is STAYED under CCP § 1281.4 pending completion of arbitration.

Defendant shall initiate the AAA arbitration within 60 calendar days after service of notice of entry of this order and shall file proof that arbitration has been initiated.

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